

Court No. - 39

Case :- WRIT - C No. - 21346 of 2021

Petitioner :- Hareesh Tyagi

Respondent :- Electricity Ombudsman And 2 Others

Counsel for Petitioner :- Pradeep Kumar Singh, Mahendra Tripathi

Counsel for Respondent :- Paras Nath Rai

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Deepak Verma, J.

Counsel for the petitioner states that he has served notice for respondent 1 upon Sri Ajay Singh, Advocate and for respondents 2 and 3 upon Sri Baleshwar Chaturvedi, Advocate. Their names are not printed in the cause list.

Put up as fresh on 21.9.2021, showing names of Sri Ajay Singh and Sri Baleshwar Chaturvedi, as counsel for the respondents.

(Deepak Verma, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.9.2021

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Petitioner :- Haresh Tyagi

Respondent :- Electricity Ombudsman And 2 Others

Counsel for Petitioner :- Pradeep Kumar Singh, Mahendra Tripathi

Counsel for Respondent :- Paras Nath Rai, Ajay Singh, Baleshwar Chaturvedi

Hon'ble Pritinker Diwaker, J.

Hon'ble Ashutosh Srivastava, J.

Heard Shri Pradeep Kumar Singh, learned counsel for the petitioner and Sri Ajay Singh who represents the respondent No. 1. Sri Baleshwar Chaturvedi, learned counsel has accepted notices on behalf of the Respondent Nos. 2 & 3.

The petitioner is aggrieved by the order dated 18.11.2020 passed by the Electricity Ombudsman, Lucknow exercising powers under Section 142 of the Electricity Act whereby and whereunder, the application of the petitioner under Section 142 of the Electricity Act has been rejected holding therein that the licensee has complied with the basic essence of the order dated 15.5.2018 of the Electricity Consumer Grievance Redressal Forum in Complaint Case No. 08A/2018 instituted by the Petitioner. The Petitioner had approached the Consumer Grievance Redressal Forum for adjudicating a dispute with regard to the Electricity Bills.

It is the contention of the petitioner that he had applied for an electricity connection on 31.8.1999 and the power connection No. 167025 was issued without electrification of the village. The learned counsel for petitioner further submits that the village in question was electrified only in the year 2017 under the Pradhan Mantri electrification scheme. The contention of the petitioner thus, is that the bills raised by the licensee were bogus and illegal as there was no electrification in respect of the period reflected in the bills. The Electricity Consumer Grievance Forum vide Order dated 15.5.2018 allowed the complaint and cancelled all the bills and directed the licensee to issue fresh bills. The licensee is stated to have challenged the order of the Electricity Consumer Grievance Redressal Forum before the Electricity Ombudsman by way of a representation case no. 180 of 2018 which was held to be not maintainable in view of the law laid down by this Court in Special Appeal No. 20/2016 (Kisaan Cold Storage & Ice Factory v. Pachimanchal Vidyut Vitran Nigam Ltd. & Others). Thereafter, the petitioner

is stated to have filed an application under Section 142 of the Electricity Act seeking enforcement of the order of the Forum. The Ombudsman, while observing that the licensee has substantially complied with the Order of the Forum, has upheld the assessment of the respondent No. 2 requiring the petitioner to deposit a sum of Rs. 58,105/- towards the electricity bills. It is also submitted by the petitioner that the respondent No. 2 has disconnected the power supply of the house of the Petitioner on 3/12/2020.

The Court finds that the licensee in pursuance to the order of the forum has recomputed the dues of the petitioner in terms of the order of the Forum and raised a bill of Rs. 58,105/- which is to be paid by the petitioner. There is no error in the said computation. The petitioner submits that he is willing to deposit the aforesaid amount. However, he prays for some concession for depositing the same by way of installments. The counsel for the licensee has no objection, particularly in view of clause 6.14 of the UP Electricity Supply Code, 2005 which permits installment facility.

Accordingly, this Writ Petition is disposed off with the direction to the petitioner to deposit the sum of Rs. 58,105/- as assessed by the respondent No. 2 towards the electricity dues in 4 installments, with the first being to the tune of Rs. 28,105/- and the remaining amount in 3 equal installments. On the deposit of the first installment, the licensee shall immediately energize the electricity connection to the house of the Petitioner. The petitioner shall pay the remaining balance in installments as directed. In the event of default in payment of the balance installments, it shall be open to the licensee to disconnect the electricity supply and initiate proceedings for recovery in accordance with law.

The writ petition stands disposed off in the above terms.

Order Date :- 21.10.2021

Ravi Prakash